

Tentative Rulings
July 15, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

16. *Sahagian v. Beaver Medical Group, P.C., et al*, Case No. CIVSB2430006
Motion to be Relieved as Attorney of Record for Plaintiffs
7/15/26, 9:00 a.m., S-17

The Court would **CONTINUE** or seek in camera discussion of the facts in support.

Here, the Ray & Seb LLP firm seeks to be relieved as counsel for Plaintiff. The declaration submitted in support only sets forth the conclusion that the relationship has broken down such that the motion is necessary. While the Court is cognizant of the protections related to attorney-client relationship, the Court will need *some* sort of averment establishing good cause pursuant to rule 1.16(b) of the Rules of Court. As currently worded, the submitted declaration is insufficient.

17. *Meggs v. FCA US, LLC, et al*, Case No. CIVSB2401106
Defendants' Motion to Compel Initial Responses to Requests for Production, Set One
7/15/26, 8:30 a.m., S-17

The Court would **GRANT** this unopposed motion. Both objection-free responses to Requests for Production, Set One, *and* sanctions in the amount of \$608 will be due within twenty days.

A failure to oppose a motion may be deemed consent to the granting of the motion. (Rules of Court, rule 8.54(c); also *Giles v. Horn* (2002) 100 Cal.App.4th 206,228 [challenge to judicial notice motion forfeited by failure to file opposition].) Here, it appears Plaintiff has conceded the validity of the arguments.

18. *Robertson v. City of Rialto, et al*, Case No. CIVSB2325118
Plaintiff's Motion to Compel Further Responses from City to Requests for Production, Set Two
Plaintiff's Motion to Compel Further Responses from City to Special Interrogatories, Set Two
7/15/26, 9:00 a.m., Dept. S-17

Tentative Rulings

As to the Motion to Compel Further Responses to RFP2: The Court would **DENY** as untimely and because movant failed to supply an appropriate separate statement. The Court would impose sanctions against Plaintiff in the amount of \$1,500, due within thirty days.

As to the Motion to Compel Further Responses to SROG2: The Court would likewise **DENY** as untimely and because movant failed to supply an appropriate separate statement. The Court would impose sanctions against Plaintiff in the amount of \$1,500, likewise due within thirty days.